

‘Ideal victim’: A misogynistic illusion

Whenever there is talk about violence against women, the conversation shifts to conduct and character. Aisiri Amin takes a look at the myth of the ‘ideal victim’ and its consequences

Many young girls and women have a reflex that’s firmly ingrained in them. When someone looks at them for more than a second, a hand goes up to adjust their top; the doorbell rings, and a dupatta is thrown over their t-shirt; or, while sitting down, legs are glued together. Under the guise of “etiquette”, from a young age women are taught to behave ideally. This ideal behaviour often goes on to dictate not only how society sees women but also how much agency they should have and when and how crimes against them are perceived. Even in the face of violence, a woman is expected to perform, be the “ideal victim”, to be even considered as deserving of justice.

There is a scene in the first episode of the 2019 Netflix series, Unbelievable, which is based on a true story, where 18-year-old Marie Adler (Kaitlyn Dever), who had been raped, goes to buy new bedsheets with her former foster parent. When she insists on looking for the same ones as those taken in as evidence, the older woman tells her, “If I were you, I would never want to see those sheets again.”

In the same episode, another former foster parent tells a detective looking into the case that Marie had seemed “detached” after the rape and that she has a history of attention-seeking behaviour.

Soon, the detectives are telling Marie to withdraw her case. So, because her behaviour was seen as not in sync with what people expect from a survivor, she is deemed to be undeserving of even an investigation.

Who is the ‘ideal victim’

The recent conviction of Tarun Tejpal, the former editor of Tehelka magazine, brought up conversations that haven’t changed since his arrest 13 years ago. In November 2013, when the Goa police registered a First Information Report (FIR) against Tejpal, charging him with sexual harassment, wrongful restraint, and rape, the conversation swiftly shifted towards the junior journalist who had filed the report. Her behaviour after the sexual assault was



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questioned, while debates over its appropriateness remained relentless.

In 2021, Tejpal was acquitted, and in a 527-page court document, there was a dominating theme: the conduct of the woman. Not of Tejpal but of the woman. The judge wrote that the woman was “smiling” and looked like she was in a “good mood.” Further stating that she “did not look disturbed, reserved, terrified or traumatised in any way, even though this was immediately after she claims to have been sexually assaulted.”

Earlier this month, Tejpal was sentenced to ten years of imprisonment. But the conversation still stayed pinned on the woman’s conduct. In opinion pieces, social media posts, and more, many launched into a tirade of speculation.

For instance, filmmaker Anand Patwardhan on social media said that after seeing the CCTV footage, he doesn’t think “any violent incident happened in the lift itself.”

This brought with it the reminder of Norwegian criminologist Nils Christie’s description of the “ideal victim” from the 1980s. Penning down some of the characteristics, he said this person is considered weaker than the offender, not blameworthy for the crime that was committed against them, acts virtuously, and the criminal is not part of the victim’s circles.

Today, as people talk about violence against women, it is evident that this deeply manipulative concept continues to determine who should be believed.

Talking about ideal victimhood, Dis-

ha Wadekar, an independent advocate, points out, “Society has always been in this business of constructing who the ideal victim is, who needs or deserves to be protected, or deserves to be believed by society. This is also very reflective of courts, because courts are not islands; they mirror the society we live in.”

She further explains that one expects the courts to be objective and neutral, and to look at evidence with objective analysis. “But that is not what happens. What happens is the court reflects the same Brahmanical and Victorian notions of morality that shape and judge the “character” of the victim,” he adds.

A patriarchal framework

In June 2020, Justice Krishna S Dixit of the Karnataka High Court granted anticipatory bail to a rape accused, reasoning in the court order that because the survivor was tired and fell asleep, it was “unbecoming of an Indian woman” and that is not “the way our women react when they are ravished.”

In the same year, a gang-rape survivor in Bihar had a breakdown on the court premises during the recording of her statement. This was after waiting in a corridor where the accused was close by. In theory, this should fit the ideal victim image. Instead, the survivor was arrested for misbehaviour.

These contradictory legal and court proceedings only further solidify what women have known for centuries: the perfect or ideal victim is an illusion created by misogynistic frameworks.

For this, women’s choices, character, and mere existence are weaponised to be used against them.

“Patriarchal definitions of women’s sexuality demand her passivity, coyness, chastity, modesty and marriage. Personal freedom is highly restricted by cultural, religious and ethical rules for women’s sexual behaviour and choices. This means that when women call out violence, they are assessed for their own daring to talk about sexual violence,” says Nishi Mitra Von Berg, social-cultural anthropologist.

This brings up the idea of “good” women as deserving of accolades for their modesty, and nonconforming and transgressive women are seen as “bad” women requiring patriarchal punishment and discipline, Nishi says.

“There is little scope for justice for women in this context as women’s consent is devalued, their bodily autonomy is disrespected, and double standards are followed, shaming them for the same behaviour that is tolerated or encouraged in men,” she explains.

In this light, Disha questions how the court looks at the evidence of a sex worker, who, in society’s eyes, is a woman of less virtue or promiscuous.

“If she goes to court and says that, despite saying no to a client, he forced himself on me, how will the court look at it? Is the court again going with the ideal victimhood framework? This is the best example of the problem with ideal victimhood,” she says.

Through the caste lens

Disha says this concept of the ideal victim is especially problematic when

the jurisprudence is shaped in cases of sexual violence against women from marginalised sections. “All these biases and concepts [of the ideal victim] disproportionately impact women from marginalised communities.”

She further asks how the courts would look at Dalit-Bahujan women, for instance, in urban slums. Adding, “Or tribal women living and stepping out for livelihood in forests where safety is a big issue.” They are not seen as “virtuous” women who stay within the four walls. She points out that if they are being attacked and violated, sexually or otherwise, in their workplaces that anyway aren’t safe, then how is the court going to look at sexual violence cases in these situations?

“Because they definitely don’t fit into society’s and the court’s construct of ideal or perfect victimhood.”

For instance, in 2016, the body of Delta Meghwal, a 17-year-old Dalit girl from a village in Barmer district of Rajasthan, was found in Bikaner near the college where she was studying. Her father filed an FIR against physical training instructor, Vijendra Singh, who belonged to the Jat community.

Disha, who was the victim’s lawyer in this case, says, “When the father filed the case, the first reaction from the oppressor caste community was that she was having an affair with her teacher. The sexual conduct of a Dalit woman is always questioned first in cases of sexual violence against them.”

She further adds that this is not restricted to society or media, but this is also the manner in which the police proceed with their investigation or the arguments made by the defence lawyer in courts.

Consequences of ideal victimhood

Earlier this month, the survivor in the Tarun Tejpal case wrote on Substack about how, for 13 years, “power has demanded I remember, explain, defend and withstand its categorisation and reduction of my entire being.”

Disha says that this was an “educated woman in an urban setting with at least some amount of privilege,” so one can imagine how this [ideal victimhood] impacts the cases of sexual violence of Dalit-Bahujan women, sex workers and transwomen.

“More and more it seems as if the only ideal victim is a dead victim. Living, breathing women with complex, layered lives are never ‘ideal’ enough for a misogynistic investigation system located in a deeply patriarchal society. The idea of death being better than dishonour, once again tied to patriarchal notions of women’s chastity, underpins the system,” says Shilpa Phadke, sociologist.

But as seen in cases such as Delta’s, even after death, women are not spared the lens of the ‘ideal victim.’

Travel

Outside the dense native bush, stunning rock formations and loud crashing tides, New Zealand’s West Coast shelters one of the most elaborate networks of historic gold mines, writes Aleksandra Bogdanova

Known widely for its rugged wilderness and unpredictable weather patterns, New Zealand’s West Coast is the country’s most isolated and sparsely populated region, with only about 33,000 people calling it home. Local towns are quiet, and there are more sheep than people, but not so long ago it was the buzzing centre of one of the country’s biggest cases of gold fever.

In 1864, the gold fever began after a few lucky people supposedly discovered yellow speckles near Greenstone Creek. It is still debated whether this was the moment that sparked the region’s short but mighty gold rush period. As the rumours of riches spread, thousands of miners from all over the world were drawn to the region.

Whether there was gold to be found or not, this sudden flow of people on the West Coast helped transform New Zealand’s young colony economy into one of the Pacific’s strongest points of trade. But unsurprisingly, by late 1860s, bigger promises drove people away from the untamed frontier. Over a century later, people like me still journey to the coastal townships of Hokitika, West Port and Greymouth, hoping to catch a glimpse of its promised riches.

Snapshot of New Zealand

What is left of this period remains hidden deep in the native forests, almost entirely untouched and welcoming for history buffs like me to explore. Traversing the West Coast is vastly different from the rest of the country. There are long windy roads, simultaneously humid and freezing conditions, and rainforests next to sparkling glaciers. It gives travellers a swift example of everything New Zealand has to offer.

Like the pioneers of the past, the best way to find a historic goldmine is to accidentally stumble upon it. I had almost driven past one of the historic sites but fortunately slammed on the brakes at the right time. The car park for Mitchells Gully Gold Mine was shrouded by native trees, ranging from Rimu, Kahikatea and the Southern rata. The leaves block out the sunlight almost immediately, sending a chill up my spine the further I walked down the gravel track.

A journey through history begins after dropping a small amount into



Main square at Shanty town. PHOTOS BY NINA BOGDANOVA

an unmanned “honesty box.” When the gate opened, I was welcomed by a musical chorus of nearby birds such as kereru, a wood pigeon, and Piwakawaka, New Zealand fantail.

Walking directly on abandoned ore cart rails led me towards a dark tunnel into the side of a mountain. When touching the rusty metal, it’s easy to forget that this is a heritage site. Hours of gruelling labour perfectly preserved an arched passageway through the hill, allowing me to hobble through.

Before emerging into a clearing on the other side, if you stop in the darkness and look up, a faint glimmer can be seen. Not of gold, but of puratoke, the New Zealand glowworm which are interestingly not worms at all but larvae of a small fungus gnat. They guided me like a twinkling trail of breadcrumbs.

On the other side lie leftover pickaxes, wagons, helmets and entire



Steam train at Shantytown Heritage Park.

Tragic COAL HISTORY

GOLD was not the only material hidden beneath the earth throughout New Zealand’s West Coast. Coal was also being mined and it proved to be more profitable for the region over time. Operations began around the late 1800s, with the rock quickly becoming the main source of power for the country’s railways, shipping and local infrastructure. Popular sites included Charming Creek, Blackball and Brunner Mine.

Unlike the area’s operational gold mines, these places harbour a much more gruesome history. Poor working conditions and several disasters served as influential points in worker health and safety regulations in the country. These sites are preserved by the government, paying homage to the lives lost due to negligence and oversight.

The Brunner Mine, a historic area, just outside Greymouth, stands out. In 1896, it was home to the country’s worst workplace accident site, where one explosion instantly buried 65 men. A memorial stands by the entrance, immediately setting the tone for the walkthrough of the heritage site. There you

can read how, just like the gold rush, people came from all over trying to create a better life for their families. You can cross the bridge that was used to transport minecarts full of coal from the mine, across the Grey River, and towards the beehive-shaped industrial furnaces.

It’s a coin toss for the kind of history you might stumble into while travelling in New Zealand’s West Coast. On one side are the whimsical leftover relics of a bygone gold fever, but the other is the tragic aftermath of the country’s affair with mass coal exports.



Water wheel at Mitchells Gully Gold Mine.

structures from the days the mine was operational. Around the river bend stands an old water wheel, frozen in time by the tightening grip of vines and thickening moss.

Even now, if I close my eyes, I can hear, smell and feel the conditions once experienced by those working deep in the valleys. It is history and nature coming together, becoming one.

Echoes of the past

To feel like a true gold panner, I decided to travel south along the coastline to Shantytown Heritage Park, one of the few places on the West Coast that offers the experience. It is a curated, reimaged mining village to give people a glimpse into what it was like to live all those years ago — especially for those not brandishing a pickaxe.

Here, the place invites a stroll down memory lane among original heritage buildings. Interestingly, these have relocated all over the region. For instance, one of the buildings, Coronation Hall, was relocated in 1974 from Ross, a small town about 60 kilometres from Greymouth, to Shantytown, saving it from demolition.

Inside, you can find wax figurines impersonating bank tellers, local butchers, barbers and blacksmiths. Pre-recorded conversations played, as I walked through the exhibitions, making it feel like I was running my day-to-day errands. Even though the pioneers of the past are long gone, they felt close by as I listened to the sound of rocks scraping against a pan, the *cachink* of the cash register and the distant blow of a steam train’s whistle.

A little further down is the local Chinatown, emulating a space where immigrant families came to the edge of the world to re-establish themselves in the hopes of finding fortune. The rustic huts where they used to play an array of gambling games with other workers give a window into one of the country’s first examples of a cultural melting pot.

Gold mining is teasing a return to the region, with plans set in stone to reopen the Snowy River Blackwater Mine later this year. So, this could be the best time to get ahead of those trying to get a taste of wealth. Moreover, history isn’t just seen in New Zealand’s West Coast; it’s experienced.